

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olubukola Ajayi	Team: Team # 4	CCRB Case #: 201311542	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 11/19/2013 9:20 PM	Location of Incident: § 87(2)(b)	Precinct: 120	18 Mo. SOL 5/19/2015	EO SOL 5/19/2015	
Date/Time CV Reported Tue, 12/10/2013 8:34 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 12/10/2013 8:34 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Schulman	08380	939435	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Guerrieri	01640	948039	120 PCT
2. POM James Trapasso	22068	947443	120 PCT
3. POM Christophe Duggan	14987	943195	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brian Schulman	Force: PO Brian Schulman used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On December 10, 2013, § 87(2)(b) filed the following complaint with the CCRB through its call processing system (encl. 4.1-4.2).

At about 9:20 p.m. on November 19, 2013, officers arrested § 87(2)(b) at § 87(2)(b) in Staten Island. The following allegations resulted:

- **Allegation A – Discourtesy:** PO Brian Schulman used physical force against § 87(2)(b)

§ 87(2)(g)

This case was not eligible for mediation.

Results of Investigation

Civilian Statement

Statements to Medical Personnel

According to § 87(2)(b)'s medical records (encl. see Privileged Documents), § 87(2)(b) went to § 87(2)(b) on § 87(2)(b). § 87(2)(b) told the medical staff at the hospital that she was assaulted by police officers and as a result of her interaction with the police, her left hand was hurting.

Photos

§ 87(2)(b)'s arrest photo (encl. 5) shows no injury on her person. § 87(2)(b) provided the seven pictures that she took of her injuries on her cell phone upon her release from police custody on November 20, 2013. The first photo (encl. 6.6) showed that there are red marks and swelling on the external part of § 87(2)(b)'s left hand. The second and third photos (encl. 6.7-6.8) supposedly reveal the bruises that § 87(2)(b) sustained around her left pinky. The fourth photo (encl. 6.9) showed what appeared to be stretch marks on the internal part of § 87(2)(b)'s right forearm. The fifth photo (encl. 6.10) showed slight red marks on the internal part of § 87(2)(b)'s right forearm. The sixth and seventh photos (encl. 6.11-6.12) revealed that there are slight red marks on the external part of § 87(2)(b)'s right wrist. The photo also revealed that the external part of § 87(2)(b)'s right wrist might be swollen.

Complainant / Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) white male, who is 5'2" tall, 195 pounds, and has blond hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 13, 2014 (encl. 6.1-6.13). § 87(2)(b) provided phone statements to the CCRB on December 10, 2013, and on January 22, 2014 (encl. 4.1-4.2, 6.14). § 87(2)(g)

At about 9:20 p.m. on November 19, 2013, § 87(2)(b) went to § 87(2)(b) in Staten Island to visit her friend, § 87(2)(b) whose last name she did not know. § 87(2)(b) took the elevator up to the third floor upon entering the building. § 87(2)(b) exited the elevator on the third floor and saw two plainclothes officers standing in front of the elevator. The officer that was standing to the right of § 87(2)(b) was a white male in his 30s, who was clean shaven, 5'7" tall, over 200 pounds, who was wearing jeans and a navy blue sweater, whose brown hair was in a Caesar haircut, and who was identified by the CCRB as PO James Trapasso of the 120th Precinct.

The second officer was a white male, who was younger than PO Trapasso, taller than PO Trapasso, skinnier than PO Trapasso, and who was wearing a woolen hat, black coat and jeans, and who has light colored eyes, which might have green, and who was identified by the CCRB to be PO Richard Guerrieri of the 120th Precinct. PO Trapasso and PO Guerrieri approached § 87(2)(b) who did not have anything in her hands. PO Guerrieri asked § 87(2)(b) for her identification. § 87(2)(b) unzipped her bag halfway and was going to reach into her bag for her identification when the officers saw a “white owl” cigar, which was in a silver aluminum foil, inside her bag. § 87(2)(b) later said that when she unzipped her bag, she took a bag of PCP out of her bag and put the bag of PCP in her mouth. One of the officers said § 87(2)(b) was trying to put drugs in her mouth. PO Guerrieri took out his handcuffs. PO Trapasso grabbed § 87(2)(b)'s right arm causing § 87(2)(b) to sustain bruises on the internal part of her right forearm. § 87(2)(b) did not recall if PO Trapasso told her to put her arms behind her back or if he grabbed her arms and placed them behind her back. PO Guerrieri grabbed § 87(2)(b)'s left arm. One of the officers, who § 87(2)(b) did not recall, told § 87(2)(b) that she was under arrest. § 87(2)(b) did not move about, tell the officers to leave her alone, or resist as the officers tried to place her in handcuffs.

§ 87(2)(b) was handcuffed by PO Trapasso. PO Guerrieri did not assist PO Trapasso in placing § 87(2)(b) in handcuffs. § 87(2)(b) sustained bruises around her right and left wrists as a result of the handcuffs being too tight. § 87(2)(b) asked the officers what she was being arrested for. PO Guerrieri asked § 87(2)(b) who she was visiting and § 87(2)(b) said that she was visiting a family member that lived in the building. PO Guerrieri searched § 87(2)(b)'s bag, and recovered the “white owl” cigar and PCP cigarette in a brass and silver aluminum foil. PO Guerrieri and PO Trapasso placed § 87(2)(b) in the elevator and took her down to the lobby of the building. The officers took § 87(2)(b) outside the building and placed her in the backseat of a marked police car, where a plainclothes male officer, who § 87(2)(b) could not describe in great detail, but who the CCRB identified as PO Christopher Duggan of the 120th Precinct, was sitting in the driver seat. PO Trapasso sat in the front passenger seat of the car while PO Guerrieri sat in the backseat with § 87(2)(b). Although § 87(2)(b) said PO Trapasso sat in the backseat with her, the CCRB determined that PO Brian Schulman of the 120th Precinct was actually the officer that got in the backseat of the police vehicle with § 87(2)(b). PO Schulman tried to break § 87(2)(b)'s left pinky as he sat in the backseat of the car by squeezing and twisting her left pinky. § 87(2)(b) did not do or say anything that could have caused PO Schulman to want to break her left pinky, and did not know why PO Schulman was trying to break her left pinky. § 87(2)(b) sustained bruises round the ring of her left pinky as a result of the force that PO Schulman used. § 87(2)(b) asked PO Schulman what he was doing as he tried to break her left pinky, but PO Schulman did not respond. PO Schulman exited the vehicle and § 87(2)(b) did not know where PO Schulman went to. § 87(2)(b) told PO Trapasso that she wanted to go to the hospital. PO Duggan and PO Trapasso then took § 87(2)(b) to § 87(2)(b).

At the hospital, an x-ray was taken of § 87(2)(b)'s left hand and drugs were recovered from § 87(2)(b)'s mouth. § 87(2)(b) was discharged from the hospital on the same day and taken to the 120th Precinct by PO Schulman and PO Trapasso. At the 120th Precinct, § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) asked the officers at the 120th Precinct for PO Schulman's name and shield number, but no one gave it to her. When § 87(2)(b) was brought before the judge, she pled guilty to the charges against her § 87(2)(b). § 87(2)(b) was released from police custody on November 20, 2013, with a copy of the criminal court complaint that was generated for her case, which she provided a copy to the CCRB. Upon her release from police custody, § 87(2)(b) took photos of the injuries that she sustained on her arrest date on her cell phone. She provided copies of these photos to the CCRB on January 13, 2014.

NYPD Statements:

Subject Officer: PO BRIAN SCHULMAN

- PO Brian Schulman is a § 87(2)(b)-old white male, who is 5'6" tall, 155 pounds, and has blonde hair and blue eyes.
- On November 19, 2014, PO Schulman was assigned to Strategic Enforcement Team (SET) for the 120th Precinct. He was assigned to an uncaged black Chevy Impala (# § 87(2)(b)) with PO Duggan. On the incident date, PO Schulman was dressed in plainclothes and worked from 4:00 p.m. to 12:35 a.m. on November 20, 2013.

Memo Book

PO Schulman's memo book (encl. 9.1-9.2) indicated that at 9:50 p.m. on November 19, 2013, he responded to a request for additional officers to respond to § 87(2)(b) in Staten Island to transport § 87(2)(b).

CCRB Testimony

PO Schulman was interviewed at the CCRB on July 15, 2014 (encl. 9.3-9.5). At 9:50 p.m. on November 19, 2013, PO Schulman and his partner, PO Duggan, received a call from PO Guerrieri or PO Trapasso, asking them to respond to § 87(2)(b) in Staten Island, where PO Guerrieri and PO Trapasso had arrested § 87(2)(b). PO Schulman did not recall who between PO Guerrieri and PO Trapasso made the call, requesting for additional officers to respond to the scene. PO Schulman, who did not recall who the operator was in the vehicle that he was assigned to, responded to the incident location with PO Duggan. PO Schulman believed PO Duggan was the operator, but he was not sure. When PO Schulman and PO Duggan arrived on the scene, PO Schulman saw PO Guerrieri and PO Trapasso escorting § 87(2)(b) who was in handcuffs, out of the building. PO Schulman exited from the vehicle that he was in and he was not sure where PO Duggan was at this point. PO Guerrieri told PO Schulman that § 87(2)(b) had tried to swallow "something." PO Schulman took the physical evidence of crack away from PO Guerrieri and PO Trapasso so that PO Guerrieri and PO Trapasso would have two accessible hands to place § 87(2)(b) into a police car. PO Schulman was not sure if PO Guerrieri and PO Trapasso were going to place § 87(2)(b) in his patrol vehicle or in their patrol car. § 87(2)(b) "struggled" with PO Guerrieri and PO Trapasso as they tried to place her in the backseat of a police car by screaming, throwing her body backwards and from side to side, and refusing to sit down upon request by PO Guerrieri and PO Trapasso. PO Schulman did not see § 87(2)(b) make physical contact with PO Guerrieri and PO Trapasso, but he said § 87(2)(b) might have put her hands or feet on PO Guerrieri and PO Trapasso as she struggled with them. § 87(2)(b) was told several times to get into the vehicle. When she did not comply with the instructions, PO Guerrieri and PO Trapasso overpowered § 87(2)(b) somehow and got her into the backseat of the police vehicle. PO Schulman did not believe that he assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the vehicle because he was holding physical evidence of crack at the time. He did not think that PO Duggan assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the vehicle, but he was not sure.

After § 87(2)(b) was placed in the backseat of the police vehicle, PO Schulman got into the backseat of the same vehicle that § 87(2)(b) had been placed in and sat behind the driver's seat. § 87(2)(b) acted "wild" while in the backseat of the police vehicle by trying to kick out the windows in the backseat of the police vehicle. PO Schulman had to hold § 87(2)(b)'s left arm, left leg, left wrist and left shoulder so she would not be able to kick out the window by pushing onto him. He did not use any other force on § 87(2)(b) besides holding on to her left arm, left

leg, left wrist and left shoulder. PO Schulman did not grab § 87(2)(b)'s left pinky at any point, twist it or try to break it. He did not recall if he held onto § 87(2)(b)'s left pinky. PO Schulman was the only officer holding on to § 87(2)(b) while she was in the backseat of the police vehicle. He did not see any officers grab § 87(2)(b)'s left pinky, twist it or try to break it. PO Schulman, PO Guerrieri, and PO Trapasso transported § 87(2)(b) to the stationhouse. He later said he did not recall which officer was in the vehicle with him as § 87(2)(b) was transported to the stationhouse. § 87(2)(b) said in a loud voice that the officers beat her up as she was being transported to the stationhouse. PO Schulman, upon being asked if § 87(2)(b) ever complained of injuries to her person as she was being transported to the stationhouse, said he did not recall what § 87(2)(b) said as she was screaming. PO Schulman knows that an ambulance was requested for § 87(2)(b) but he did not know who called for the ambulance and he did not know if the ambulance was called while he was en route to the stationhouse or while he was at the stationhouse. PO Schulman did not talk to § 87(2)(b) at the stationhouse and he did not hear § 87(2)(b) threatening to kill herself while she was at the stationhouse. PO Schulman said the arresting officer, whom he did not know, but who the CCRB determined was PO Guerrieri, dealt with § 87(2)(b) at the stationhouse. He did not escort § 87(2)(b) to the hospital and he did not know which officer eventually did.

Witness Officer: PO RICHARD GUERRIERI

- PO Richard Guerrieri is a § 87(2)(b)-old white male, who is 5'4" tall, 185 pounds, and who has black hair and brown eyes.
- On November 19, 2013, PO Guerrieri was assigned to Strategic Enforcement Team (SET) for the 120th Precinct. He was assigned to unmarked van (RMP # § 87(2)(b)) with PO James Trapasso. On the incident date, PO Guerrieri was dressed in plainclothes (believes he was wearing blue jeans, but he was not sure) and worked from 4:00 p.m. to 3:05 a.m. on November 20, 2013.

Memo Book

PO Guerrieri's memo book (encl. 7.1-7.4) indicated that at 9:10 p.m. on November 19, 2013, he conducted a vertical at § 87(2)(b) in Staten Island. At 9:15 p.m., § 87(2)(b) was stopped on the fourth floor of the building. PO Guerrieri noted that he asked § 87(2)(b) if she lived in the building. § 87(2)(b) then placed a clear Ziploc bag containing phencyclidine (PCP) in her mouth preventing, him and PO Trapasso from getting the drugs. While apprehending § 87(2)(b), § 87(2)(b) kicked and flailed her arms preventing PO Guerrieri and PO Trapasso from handcuffing her. Search conducted incident to lawful arrest revealed that § 87(2)(b) had one cigar wrap, containing PCP, in her left jacket pocket and one clear Ziploc bag of PCP in her handbag. At 9:20 p.m., Sgt. Nancy Cirigliano of the 120th Precinct was notified of § 87(2)(b)'s arrest. PO Guerrieri was transported to the 120th Precinct in unmarked vehicle number 310 by PO Brian Schulman and PO Christopher Duggan. § 87(2)(b) had no permission to be in the building that she was arrested in and she provided no answer upon being asked why she was in the building. At 9:30 p.m., PO Guerrieri arrived at the 120th Precinct front desk, where Sgt. Richard Vomero of the 120th Precinct called an ambulance for § 87(2)(b) because she was determined to be emotional disturbed person and because she swallowed PCP. At 9:35 p.m., an ambulance arrived at the stationhouse. An Emergency Medical Technician (EMT) asked § 87(2)(b) what she swallowed and § 87(2)(b) said she took PCP. Ambulance call report (ACR) number § 87(2)(b) was generated for the job. At 9:45 p.m., a warrant check conducted for § 87(2)(b) yielded no hit. At 10:30 p.m., complaint report number § 87(2)(b) was generated for the job. PO Trapasso told PO Guerrieri that § 87(2)(b) spat out a clear Ziploc bag of PCP on the ground at the hospital in PO Trapasso's presence. At 12:30 a.m. on November 20, 2013, a pink

Guess handbag, black LG cellphone, pink and black case, battery, black hair clip, three lip balms, miscellaneous papers, metro cards, 2 VISA debit cards, four stainless steel keys on a key chain, and green string from § 87(2)(b)'s jacket were vouchered for safekeeping. At 1:30 a.m., PO Guerrieri did two supporting depositions for criminal files. At 2:05 a.m., voucher # § 87(2)(b) was created for the cigar wrap containing PCP wrapped in the aluminum foil that was recovered from § 87(2)(b)'s bag, the cigar wrap of PCP recovered from § 87(2)(b)'s left jacket pocket, and the Ziploc bag of PCP that § 87(2)(b) placed in her mouth. Voucher # § 87(2)(b) was generated by PO Trapasso for § 87(2)(b)'s jewelry.

Arrest Report

The arrest report (encl. 7.5-7.7) generated for § 87(2)(b) indicated that at 9:20 p.m. on November 19, 2013, § 87(2)(b) was standing in fourth floor hallway. When PO Guerrieri asked if § 87(2)(b) lived in the building, § 87(2)(b) placed a clear bag of alleged PCP in her mouth. While apprehending § 87(2)(b), § 87(2)(b) kicked and flailed her arms thereby preventing PO Guerrieri and PO Trapasso from handcuffing her. Search incident to lawful arrest revealed that § 87(2)(b) was in possession of one cigar wrap and one clear Ziploc containing alleged PCP. § 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(b) The report revealed that no physical force was used on § 87(2)(b).

Complaint Report

§ 87(2)(g)

CCRB Testimony

PO Richard Guerrieri was interviewed at the CCRB on June 9, 2014 (encl. 7.10-7.14). At about 9:20 p.m. on November 19, 2013, PO Guerrieri and his partner, PO James Trapasso, conducted a vertical of a housing building, located at § 87(2)(b) in Staten Island. As PO Guerrieri and PO Trapasso were walking up the stairs, the officers saw § 87(2)(b) standing alone in the fourth floor hallway with an over the shoulder bag. PO Guerrieri decided to approach § 87(2)(b) because he wanted to make sure that § 87(2)(b) lived or had a reason to be in the NYCHA building. PO Guerrieri and PO Trapasso approached § 87(2)(b). PO Guerrieri asked § 87(2)(b) if she had a reason to be in the building or if she lived in the building, but § 87(2)(b) did not respond to PO Guerrieri's question. PO Guerrieri asked § 87(2)(b) again if she lived in the building or has any reason to be in the building and § 87(2)(b) did not respond. § 87(2)(b) placed a white Ziploc bag that contained a white powdery substance, which PO Guerrieri determined was PCP based on his experience, into her mouth. § 87(2)(b) was holding the Ziploc bag in one of her hands before she placed the Ziploc bag in her mouth. PO Guerrieri believed he asked § 87(2)(b) at some point what was in the Ziploc bag, but § 87(2)(b) did not respond. PO Guerrieri told § 87(2)(b) that he was taking her to the 120th Precinct.

When PO Guerrieri and PO Trapasso tried to place § 87(2)(b)'s arms behind her back, § 87(2)(b) reacted by flailing her arms, kicking her feet and screaming at the officers. § 87(2)(b)'s kicks did not connect with any of the officers, and PO Guerrieri did not recall what § 87(2)(b) was saying when she was screaming. PO Guerrieri did not recall anyone coming out of the apartment as § 87(2)(b) was screaming. PO Guerrieri and PO Trapasso subdued § 87(2)(b)'s resistance by pulling her hands behind her back and placing her wrists in handcuffs. They did not use any additional force in order to contain § 87(2)(b)'s resistance. PO Guerrieri indicated that it took him and PO Trapasso about 30 seconds to place § 87(2)(b) in handcuffs. PO Guerrieri believed he was the officer who placed handcuffs on § 87(2)(b)'s wrists. PO Guerrieri and PO

Trapasso notified their supervisor, Sgt. Nancy Cirigliano, about § 87(2)(b)'s arrest, but Sgt. Cirigliano did not respond to the scene. PO Guerrieri or PO Trapasso searched § 87(2)(b)'s left jacket pocket and recovered one cigar wrap of PCP. PO Guerrieri or PO Trapasso searched § 87(2)(b)'s handbag and recovered one PCP wrapped in an aluminum foil. PO Guerrieri determined that § 87(2)(b) was trespassing because her identification indicated that she did not live at the incident location. PO Guerrieri and PO Trapasso brought § 87(2)(b) out of the building.

When PO Guerrieri and PO Trapasso brought § 87(2)(b) out of the building, they placed § 87(2)(b) in the backseat of a patrol vehicle that was assigned to PO Brian Schulman and PO Christopher Duggan of the 120th Precinct, members of PO Guerrieri's Strategic Enforcement Team (SET). PO Guerrieri did not recall which officer between PO Schulman and PO Duggan was the driver of the patrol vehicle that § 87(2)(b) was placed in. PO Guerrieri did not recall which officer between PO Schulman and PO Duggan got in the backseat of the police vehicle with § 87(2)(b). PO Guerrieri said usually when a patrol vehicle is not caged, one of the officers that were assigned to the police vehicle would get in the backseat of the police vehicle with the prisoner. PO Schulman and PO Duggan transported § 87(2)(b) to the 120th Precinct. PO Guerrieri and PO Duggan responded to the stationhouse in a different vehicle. When PO Guerrieri and PO Duggan responded to the stationhouse shortly after, PO Guerrieri saw § 87(2)(b) by the front desk area. He did not see any injuries on § 87(2)(b)'s person and she did not complain of any injuries. Upon being shown photos of § 87(2)(b)'s alleged injuries, PO Guerrieri said he did not recall seeing any bruises or swelling on § 87(2)(b)'s left wrist, left pinky, and the internal part of § 87(2)(b)'s right forearm. PO Guerrieri said he did not take any actions that could have caused these injuries on § 87(2)(b)'s person and he did not see PO Trapasso taking any actions that could have caused these injuries on § 87(2)(b)'s person. § 87(2)(b) did not request any medical attention at the incident location or at the stationhouse. However, the desk officer at the 120th Precinct, identified by PO Guerrieri as Sgt. Richard Vomero, requested an ambulance for § 87(2)(b). An ambulance responded to the scene and transported § 87(2)(b) to § 87(2)(b), where she admitted that she had smoked PCP. PO Trapasso escorted § 87(2)(b) alone to the hospital. PO Guerrieri believed he drove behind the ambulance to the hospital, but he was not sure. PO Trapasso told PO Guerrieri at some point that § 87(2)(b) spat out the Ziploc bag that she had placed in her mouth in his presence on the ground at the hospital.

Witness Officer: PO JAMES TRAPASSO

- PO James Trapasso is a § 87(2)(b)-old white male, who is 5'6" tall, 205 pounds, and who has brown hair and brown eyes.
- On November 19, 2013, PO Trapasso was assigned to Strategic Enforcement Team (SET) for the 120th Precinct. He was assigned to black van # § 87(2)(b) with PO Guerrieri. On the incident date, PO Trapasso was dressed in plainclothes and worked from 4:00 p.m. to 12:35 a.m. on November 20, 2013.

Memo Book

PO Trapasso's memo book (encl. 8.1-8.3) indicated that at 9:10 p.m. on November 19, 2013, PO Trapasso conducted a vertical of the building located at § 87(2)(b) in Staten Island. At 9:15 p.m., § 87(2)(b) was stopped on the § 87(2)(b) floor. § 87(2)(b) tried to swallow PCP. § 87(2)(b) resisted arrest by locking her arms, kicking her feet and refusing to be placed in handcuffs. At 9:20 p.m., § 87(2)(b) was transported to the 120th Precinct. At 9:30 p.m., Emergency Medical Services (EMS) was called for § 87(2)(b) because she swallowed PCP and threw herself on the ground by the front desk at the 120th Precinct. When the Emergency Medical Technicians (EMT) asked § 87(2)(b) what she swallowed, she said, she took PCP.

Ambulance call report # § 87(2)(b) was generated for the case. At § 87(2)(b) PO Trapasso arrived at § 87(2)(b). At 10:17 p.m., § 87(2)(b) spat out the Ziploc bag of PCP on the hospital's ground in the presence of PO Trapasso. At 12:17 a.m. on November 20, 2013, PO Angelica Ring of the 120th Precinct relieved PO Trapasso. At 1:07 a.m., voucher # § 87(2)(b) was generated for § 87(2)(b)'s jewelry: necklace yellow, white ring, a yellow cross, a yellow heart, and three yellow rings.

CCRB Testimony

PO James Trapasso was interviewed at the CCRB on June 16, 2014 (encl. 8.4-8.7). § 87(2)(g) As PO Trapasso and PO Guerrieri were coming down the stairwell of the apartment building, located at § 87(2)(b) in Staten Island, they saw § 87(2)(b) walking around the § 87(2)(b) floor hallway with a bag in her hand. § 87(2)(b) who was alone, stopped and stared at PO Trapasso and PO Guerrieri when she noticed them. PO Trapasso and PO Guerrieri decided to approach § 87(2)(b) because she was hanging out in the hallway. PO Trapasso, who did not recall who spoke first between him and PO Guerrieri, said he or PO Guerrieri asked § 87(2)(b) if she lived in the building, but § 87(2)(b) did not respond. PO Trapasso believed that § 87(2)(b) was under the influence of drugs or alcohol because she had a blank look on her face and did not respond to his or PO Guerrieri's questions when he and PO Guerrieri approached and questioned her. PO Trapasso did not recall if he or PO Guerrieri asked § 87(2)(b) if she knew anyone who lived in the building. PO Trapasso or PO Guerrieri asked § 87(2)(b) for identification and § 87(2)(b) placed what appeared to be a small Ziploc bag, which was in one of § 87(2)(b)'s hands, into her mouth. PO Trapasso did not recall what hand § 87(2)(b) had the Ziploc bag in. He believed that the Ziploc bag contained PCP because he perceived the odor of chlorine and based on his experience and training PCP smells like chlorine. PO Trapasso and PO Guerrieri tried to place § 87(2)(b) in handcuffs when § 87(2)(b) placed the Ziploc bag into her mouth. § 87(2)(b) resisted by flailing her arms and kicking at the officers. § 87(2)(b)'s arms made contact with PO Trapasso's and PO Guerrieri's arms or shoulders as she flailed her arms, but the officers did not sustain any injuries. § 87(2)(b) did not connect with PO Trapasso and PO Guerrieri when she kicked at them. PO Trapasso and PO Guerrieri subdued § 87(2)(b)'s resistance by placing her face first on the ground "as easily as they could." § 87(2)(b) continued to kick at the officers while she was on the ground, but her kick did not connect with PO Trapasso and PO Guerrieri. PO Trapasso and PO Guerrieri placed § 87(2)(b)'s arms behind her back while she was lying on the ground and handcuffed her. PO Trapasso did not recall who between him and PO Guerrieri placed handcuffs around § 87(2)(b)'s wrists. He and PO Guerrieri picked § 87(2)(b) up from the ground. PO Trapasso or PO Guerrieri radioed for additional officers to respond to the scene to come and assist them in transporting § 87(2)(b) to the 120th Precinct stationhouse. PO Trapasso did not recall who between him and PO Guerrieri radioed for back up. PO Trapasso and PO Guerrieri took § 87(2)(b) down to the lobby of the building using the elevator. § 87(2)(b) continued to resist by trying to push off of the officers.

When PO Trapasso and PO Guerrieri took § 87(2)(b) outside the building, two male officers, whose names PO Trapasso did not know, but who were identified by the CCRB as PO Brian Schulman and PO Christopher Duggan of the 120th Precinct, responded to the scene in a patrol vehicle, which was not caged. PO Trapasso did not recall if it was him, PO Guerrieri, PO Schulman, or PO Duggan that placed § 87(2)(b) in the backseat of the patrol vehicle. § 87(2)(b) resisted being placed in the backseat of the patrol vehicle by pushing off of the officers that were trying to place her into the backseat of the police vehicle. PO Trapasso said he, PO Guerrieri, PO Schulman, or PO Duggan succeeded in placing § 87(2)(b) in the backseat of the patrol vehicle by sitting her down on the backseat of the police vehicle. He said no force was used

to get § 87(2)(b) in the vehicle. PO Trapasso did not recall any officers getting into the backseat of the police vehicle with § 87(2)(b) although he did say that as a matter of procedure, when a patrol vehicle is not caged, the reporter in the vehicle is expected to ride in the backseat of the vehicle with the prisoner. PO Trapasso later said that he recalled that an officer got in the backseat of the patrol vehicle with § 87(2)(b) but he did not recall who this officer was. PO Trapasso did not grab § 87(2)(b)'s left pinky, squeeze it, twist it or try to break it off, and he did not see any other officers doing this to § 87(2)(b) on the incident date. PO Trapasso, who did not enter into the vehicle that § 87(2)(b) was placed in, returned to the van that he was assigned to. He did not recall if he and PO Guerrieri arrived at the 120th Precinct stationhouse before § 87(2)(b) PO Schulman and PO Duggan did.

At the 120th Precinct, PO Trapasso saw § 87(2)(b) deliberately throw herself on the ground by the front desk area of the stationhouse and intentionally hit her head on the ground while in handcuffs. He did not recall if § 87(2)(b) fell to the ground on her back or face first. PO Trapasso did not recall if he heard § 87(2)(b) make any comments about being suicidal or wanting to strangle herself and PO Trapasso was not told by any officers that § 87(2)(b) had any suicidal inclinations. § 87(2)(b) was charged with trespassing and with the possession of PCP. § 87(2)(b)'s bag was searched at the stationhouse and no contraband was recovered. PO Trapasso did not recall who searched § 87(2)(b)'s bag. Emergency Medical Services (EMS) was requested for § 87(2)(b) even though she did not request for medical attention because they did not want her to overdose on PCP. When the Emergency Medical Technicians (EMT) arrived at the stationhouse, they asked § 87(2)(b) what she swallowed and she said PCP. PO Trapasso escorted § 87(2)(b) in the ambulance to the hospital. He was the only officer that rode in the ambulance with § 87(2)(b). PO Trapasso did not recall if he heard § 87(2)(b) make any complaints to the EMTs about injuries to her left pinky while he was in the ambulance. PO Trapasso did not observe any injuries on § 87(2)(b)'s person and he did not hear her complain of any injuries.

At the hospital, § 87(2)(b) spat out a Ziploc bag of PCP as PO Trapasso sat down next to her. PO Trapasso was the only officer that was present when this happened. PO Guerrieri was processing paperwork at the stationhouse at the time. The Ziploc bag of PCP that § 87(2)(b) spat out while at the hospital was recovered and vouchered. PO Trapasso indicated that he did not know if § 87(2)(b) told the hospital staff that she sustained any injuries to her left pinky because when she was being examined by the medical staff, § 87(2)(b) was placed in a room while he looked into the room from outside. Upon being shown photos of the injuries that § 87(2)(b) allegedly sustained, PO Trapasso said he did not recall seeing any redness, swelling and/or bruises on § 87(2)(b)'s left wrist, left hand, left pinky, left forearm, and internal part of right forearm.

Witness Officer: PO CHRISTOPHER DUGGAN

- PO Christopher Duggan is a § 87(2)(b)-old white male, who is 5'11" tall, 185 pounds, and who has brown hair and blue eyes.
- On November 19, 2013, PO Duggan was assigned to Strategic Enforcement Team (SET) for the 120th Precinct. He was assigned to an unmarked police car with PO Schulman. On the incident date, PO Duggan was dressed in plainclothes and worked from 4:00p.m. to 12:35 a.m. on November 20, 2013.

Memo Book

PO Duggan's memo book (encl. 10.1-10.3) indicated that at 9:30 p.m. on November 19, 2013, PO Duggan responded to a request for additional officers to respond to § 87(2)(b) in Staten Island to transport § 87(2)(b) who had been arrested for § 87(2)(b).

§ 87(2)(b)

§ 87(2)(b)

was combative while in handcuffs and while in vehicle.

CCRB Testimony

PO Duggan was interviewed at the CCRB on July 15, 2014 (encl. 10.4-10.6). On the incident date, PO Duggan and PO Schulman received a call from PO Guerrieri and PO Trapasso, requesting for additional officers to respond to § 87(2)(b) in Staten Island. PO Duggan believed PO Guerrieri and PO Trapasso were having trouble handcuffing § 87(2)(b). PO Duggan drove PO Schulman to the incident location in the uncaged vehicle that they were assigned to. When PO Duggan arrived on the scene, § 87(2)(b) was in handcuffs and was very “combative” as she screamed and turned her body from side to side as PO Guerrieri and PO Trapasso held on to her. PO Duggan, who did not recall what § 87(2)(b) was saying as she was screaming, assumed § 87(2)(b) was trying to escape from the way she was behaving. He did not observe any injuries on § 87(2)(b)'s body and he did not recall hearing § 87(2)(b) complain of any injuries to her person. PO Guerrieri or PO Trapasso told PO Duggan at some point that § 87(2)(b) was arrested for § 87(2)(b). PO Duggan believed that “dust,” which he also referred to as PCP, was recovered from § 87(2)(b)'s person. PO Duggan did not recall if the PCP that was recovered from § 87(2)(b)'s person was ever given to him or PO Schulman by PO Guerrieri and PO Trapasso.

When PO Guerrieri and PO Trapasso tried to place § 87(2)(b) in the backseat of PO Duggan's vehicle, § 87(2)(b) continued to be “combative” by screaming and by moving her body from side to side. PO Duggan did not recall what § 87(2)(b) was saying as she was screaming. He believed § 87(2)(b) was under the influence when he saw her because of her “erratic behavior” and because of the “incoherent statements” that she was making. PO Duggan did not recall if he assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the backseat of his vehicle. He knows PO Schulman assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the backseat of his vehicle, but he did not recall at what point PO Schulman assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the backseat of his vehicle. PO Duggan did not know where on § 87(2)(b)'s person PO Schulman touched when he assisted PO Guerrieri and PO Trapasso in placing § 87(2)(b) in the police vehicle. He also did not know where on § 87(2)(b)'s body, PO Guerrieri and PO Trapasso were holding as they tried to place § 87(2)(b) in the police vehicle. PO Duggan did not recall where he was standing when PO Guerrieri, PO Trapasso and PO Schulman tried to place § 87(2)(b) in the backseat of his vehicle. He did not recall if any commands were issued to § 87(2)(b) when she tried to avoid being placed into the backseat of his vehicle. PO Duggan said § 87(2)(b) did not enter into the backseat of his vehicle willingly. He later said he did not know if § 87(2)(b) eventually entered into the backseat of his vehicle willingly or if PO Schulman, PO Guerrieri and PO Trapasso had to use force to get her to enter into the backseat the vehicle. He did not recall and could not estimate how long it took PO Schulman, PO Guerrieri and PO Trapasso to place § 87(2)(b) in the backseat of his police vehicle.

Once § 87(2)(b) was in placed into the backseat of PO Duggan's vehicle, § 87(2)(b) tried to kick out the doors and windows of PO Duggan's vehicle. PO Schulman got into the backseat of the vehicle with § 87(2)(b) and sat behind the driver's seat because as a matter of procedure, an officer was supposed to sit in the backseat of a police vehicle with a defendant when the police vehicle is uncaged. PO Duggan did not see PO Schulman grab § 87(2)(b)'s left pinky, twist it or try to break it while he, PO Schulman and § 87(2)(b) were in his police vehicle. He did not see any other officers doing this to § 87(2)(b). PO Duggan did not grab § 87(2)(b)'s left pinky, twist it or try to break it. PO Duggan drove § 87(2)(b) and PO Schulman to the 120th Precinct. He did not recall if § 87(2)(b) complained of any injuries as he was transporting her to the

stationhouse. At the stationhouse, PO Duggan did not recall who between him and PO Schulman removed § 87(2)(b) from the backseat of his police vehicle. He said § 87(2)(b) was still acting up when she was brought to the stationhouse, but he did not recall how exactly she was acting up while at the stationhouse. PO Duggan believed an ambulance was called for § 87(2)(b) at the stationhouse because he believed she either swallowed or tried to swallow the drug that was recovered from her person. PO Duggan did not know who called for the ambulance. He did not know that § 87(2)(b) was taken to the hospital and he did not know which officer escorted her to the hospital. PO Duggan, upon being shown copies of the photos of § 87(2)(b)'s injuries, said he did not see any of the alleged injuries on § 87(2)(b)'s person on the incident date.

Medical Records

§ 87(2)(b)'s medical records (encl. see Privileged documents) indicated that at § 87(2)(b) on § 87(2)(b) § 87(2)(b) was brought to § 87(2)(b) by EMTs while in the custody of police officers from the 120th Precinct. The EMTs informed the hospital staff that § 87(2)(b) was a violent EDP, who ingested PCP when she was approached by police officers, identified by the CCRB as PO Richard Guerrieri and PO James Trapasso of the 120th Precinct. The EMTs also informed the hospital staff that § 87(2)(b) told them that she wanted to hang herself with the shackles. § 87(2)(b) denied having suicide ideation at § 87(2)(b) on the same date. § 87(2)(b) told the hospital staff that the officers assaulted her, and complained of left hand pain. An x-ray conducted on § 87(2)(b)'s left hand revealed no fractures or dislocations. § 87(2)(b) was diagnosed with a left hand contusion and told to apply ice on the injured area to help with the pain and swelling. She was also told to avoid using the injured body part. § 87(2)(b) was prescribed 400 MG of Motrin for the pain. § 87(2)(b) was then released to the police at § 87(2)(b).

A request for the Ambulance Call Report (ACR) from the Fire Department of New York (FDNY) revealed that there was no record of an ACR for the incident (encl. 20.20).

NYPD Documents

Command Log

The Command Log (encl. 12.1-12.6) generated for the date and time of the incident indicated that § 87(2)(b) was arrested by PO Guerrieri and charged with § 87(2)(b). The document indicated that § 87(2)(b) was “high as a kite” at the time of her arrest. The document also indicated that § 87(2)(b) was taken to § 87(2)(b) by PO Duggan and PO Trapasso.

Communication Records

Event Information # § 87(2)(b) (encl. 11.1-11.2) and Event Chronology # § 87(2)(b) (encl. 11.3) indicated that at 7:36 p.m., officers assigned to sector M of the 120th Precinct were conducting a vertical at § 87(2)(b) in Staten Island.

Property Voucher

The property voucher (encl. 14.1-14.4) revealed that PO Guerrieri recovered the following items from § 87(2)(b)'s person during the course of her arrest: a clear Ziploc bag of PCP, a clear Ziploc bag of PCP in aluminum foil, a cigar wrap containing PCP, black hair clip, green string from § 87(2)(b)'s jacket, pink Guess handbag, black LG phone, black cell phone case, black and pink cell phone case, three lip balms, two VISA debit cards and four keys on a key chain.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of August 20, 2014, with regard to the incident (encl. 17.1).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 2).

Subject Officer CCRB History

- PO Brian Schulman has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 1).

Conclusion

Identification of Subject Officer

[§ 87(2)(g)]

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Brian Schulman used physical force against [§ 87(2)(b)]

[§ 87(2)(b)] alleged that PO Schulman squeezed and twisted her left pinky as he tried to break her left pinky. PO Schulman, who admitted that he got into the back seat of the police vehicle with [§ 87(2)(b)] denied twisting, squeezing and trying to break [§ 87(2)(b)]'s left pinky. He said he got into the backseat of his vehicle with [§ 87(2)(b)] because his vehicle did not have a cage separating the front seats from the back seat and as a matter of procedure, an officer is supposed to seat in the backseat with a prisoner when the vehicle in question is not caged. PO Schulman mentioned [§ 87(2)(b)] continued to be “combative” once she was placed in the backseat of the police car by trying to push off him so she could kick the windows in the police vehicle. PO Schulman tried to prevent [§ 87(2)(b)] from kicking out the windows in the police vehicle by holing on to [§ 87(2)(b)]'s left arm, left leg, left wrist and left shoulder. He did not know if he held on to [§ 87(2)(b)]'s left pinky at any point.

PO Duggan, who was the driver of the police vehicle that [§ 87(2)(b)] was placed in, and PO Guerrieri corroborated that PO Schulman got into the backseat of the vehicle with [§ 87(2)(b)]. PO Duggan also corroborated that [§ 87(2)(b)] tried to kick on the doors and windows of the police vehicle while she was seated in the backseat of the police vehicle. PO Duggan did not see PO Schulman grab [§ 87(2)(b)]'s left pinky, twist it and try to break it. [§ 87(2)(b)]'s medical

records from the § 87(2)(b) revealed that § 87(2)(b) had a left hand contusion.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date